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May 16, 2018					
FEDERAL	MARITIME	COMMISSION			

FEDERAL MARITIME COMMISSION

DOCKET NO. 17-05

CMI DISTRIBUTION, INC.

v.

**SERVICE BY AIR, INC., RADIANT CUSTOMS SERVICES INC. (FORMERLY
KNOWN AS SBA CONSOLIDATORS, INC.) and LAS FREIGHT SYSTEMS LTD.**

ORDER AMENDING SCHEDULING ORDER

On October 30, 2017, a Scheduling Order was entered setting forth a briefing schedule for this proceeding. *CMI Distribution, Inc. v. Service by Air, Inc., Radiant Customs Services Inc. (f/k/a SBA Consolidators, Inc.) and LAS Freight Systems Ltd.*, FMC No. 17-05 (ALJ Oct. 30, 2017) (Scheduling Order) (*CMI v. Radiant/SBA*). Complainant CMI Distribution, Inc. (CMI) has filed its opening briefs, proposed findings of facts, and appendices, and respondent Service by Air, Inc. (SBA) and Radiant Customs Services Inc. formerly known as SBA Consolidators, Inc. (Radiant) have filed their response. Respondent LAS Freight System Ltd. (LAS Freight) has not filed a response.

On May 3, 2018, CMI filed a motion to adjust briefing schedule to permit it to take the deposition of a witness who signed sworn statement included in the appendix submitted by SBA/Radiant. On May 10, 2018, SBA/Radiant filed an opposition to the motion.

The undersigned scheduled a telephone conference on May 14, 2018, at 1:30 P.M. EDT to address the motion and other matters raised by the briefs and appendices filed in this proceeding. CMI was represented by attorney Brendan Collins. Radiant/SBA was represented by attorney Steven W. Block. No attorney or representative appeared for respondent LAS Freight. A court reporter attended the conference and a transcript will be prepared. Several matters were addressed.

I. CMI APPENDICES.

CMI filed two briefs, two sets of proposed findings of fact, and two appendices, one of each against SBA/Radiant and LAS Freight. There appeared to be significant overlap between the appendices. CMI confirmed that the LAS Freight appendix is comprised of Exhibits A5, A15, B (but not B1-B8), C, F, F1 from the SBA appendix. The LAS Freight appendix also includes Exhibits G and G1. The SBA appendix does not include LAS Freight Exhibits G and G1.

II. CONTAINERS AT ISSUE.

In a notice issued September 21, 2017, the undersigned identified twenty-nine maritime containers that were transported by water between a foreign port and a port in the United States for which CMI alleges that SBA charged demurrage or detention fees not permitted by a tariff: Complaint Exhibit 1 FLDR numbers 2, 3, 9, 10, 13, 16, 17, 19, 21, 25, 27, 29, 33, 36, 42, 43, 44, 46, 49, 50, 51, 52, 53, 54, 58, 59, 60, 61, and 62. *CMI v. Radiant/SBA*, FMC No. 17-05 (ALJ Sept. 21, 2017) (Notice to the Parties and Order to Schedule Conference). Counsel for CMI states that his recollection is that there thirty containers, but that CMI is not seeking a reparation award for any other containers.

III. JOINT SUPPLEMENTAL APPENDIX.

To facilitate a decision, the undersigned has directed the parties to prepare a joint supplemental appendix containing all of the documents related to the shipping of each container for which CMI seeks a reparation award. The documents will be arranged by shipment and reference the FLDR number for the container in Complaint Exhibit 1 and include, but not be limited to, the following documents:

- VOCC and NVOCC bill of lading or other shipping contract
- CBP form
- Dock receipts and chassis contract
- Invoice or other record from VOCC to SBA or CMI for freight charges
- Invoice or other record from LAS Freight to SBA or CMI for freight charges
- Invoice or other record from SBA to CMI for freight charges
- Document issued by VOCC or NVOCC to SBA or CMI tendering container for delivery
- Document showing release of container by VOCC or NVOCC to SBA or any other entity
- Chassis contract and contract for drayage of container from the inland rail yard to Freight Tech's yard
- Invoice from Freight Tech to SBA for drayage of container from the inland rail yard to Freight Tech's yard
- Record of payment from SBA to Freight Tech for drayage from the inland rail yard to Freight Tech's yard
- Invoice or other record from VOCC, LAS Freight, or NVOCC or SBA or CMI for demurrage, detention, or other charges

- Invoice or other record from Freight Tech to LAS Freight, SBA, or CMI for demurrage, detention, or other charges
- Emails related to the shipment of the containers
- Any other shipping records reviewed by the experts

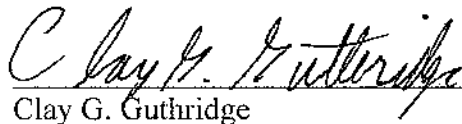
The parties must file the joint supplemental appendix on or before June 1, 2018.

IV. ADDITIONAL BRIEFING.

CMI's reply brief is due May 16, 2018. That filing date is vacated. CMI may file its reply to the SBA/Radiant response to its merits brief on or before June 15, 2018. CMI may include a section in its reply brief addressing the evidence included in the joint supplemental appendix. On or before June 29, 2018, SBA/Radiant may file a sur-reply **LIMITED SOLELY TO THE SECTION OF CMI'S REPLY BRIEF ADDRESSING THE EVIDENCE INCLUDED IN THE JOINT SUPPLEMENTAL APPENDIX. ANY OTHER ARGUMENT WILL BE STRICKEN.**

V. CMI'S MOTION TO ADJUST BRIEFING SCHEDULE TO PERMIT IT TO TAKE THE DEPOSITION OF A WITNESS.

The motion to adjust the briefing schedule is dismissed as moot. A decision on the motion for leave to depose the witness is deferred.



Clay G. Guthridge
Administrative Law Judge